

SENTENCING ORDER

IN THE CIRCUIT COURT OF Saline COUNTY, ARKANSAS, Twenty-Second JUDICIAL DISTRICT 1 DIVISION

On 3/28/2018 the Defendant appeared before the Court, was advised of the nature of the charge(s), of Constitutional and legal rights, of the effect of a guilty plea upon those rights, and of the right to make a statement before sentencing.

Offender	Defendant [Last, First, MI]	Knight, Amanda		DOB	3/5/1978	Sex	☐ Male ☒ Female	Total Number of Counts	2
	SID#	4088511	Race & Ethnicity	☒ White ☐ Other	☐ Black ☐ Unknown	☐ Asian ☐ Hispanic	☐ Native American		
	Supervision Status at Time of Offense								

Court Info	Judge	Grisham Phillips		File Stamp	
	Prosecuting Attorney/Deputy	Rebecca Bush			
	Defendant's Attorney	James Law	☒ Private ☐ Appointed		☐ Public Defender ☐ Pro Se
	Change of Venue	☐ Yes ☒ No			
If Yes, from:					

FILED
SALINE COUNTY
CIRCUIT CLERK
2018 APR -5 AM 8:13
BY: [Signature]

Legal Statements	☐ Pursuant to A.C.A. ☐ 16-93-301 et seq., or ☐ _____ this Court, without making a finding of guilt or entering a judgement of guilt and with the consent of the Defendant defers further proceedings and places the Defendant on probation.	
	There being no legal cause shown by the Defendant, as requested, why judgement should not be pronounced, a judgement:	
	☒ is hereby entered against the Defendant on each charge enumerated, fines levied, and court costs assessed. Defendant was advised of the conditions of the sentence and/or placement on probation and understands the consequences of violating those conditions. The Court retains jurisdiction during the period of probation/suspension and may change or set aside the conditions of probation/suspension for violations or failure to satisfy Department of Community Correction (D.C.C.) rules and regulations.	
	☐ of conviction is hereby entered against the Defendant on each charge enumerated, fines levied, and court costs assessed. The Defendant is sentenced to the Arkansas Department of Correction (A.D.C.) for the term specified on each offense shown below.	
Defendant made a voluntary, knowing and intelligent waiver of right to counsel. ☐ Yes ☒ No		

Offense #1 Most Serious Offense	A.C.A. # / Name of Offense <u>5-14-124(a)(2) - Sexual Assault, First Degree (8/16/2013 and thereafter)</u>				Case # <u>63CR-16-586-3</u>		
	A.C.A. # Orig. Charge		ATN <u>SAL004949783</u>	Offense was ☒ Nolle Prossed ☐ Dismissed ☐ Acquitted			
	Offense Date	<u>11/1/2015</u>	Appeal from District Court	☐ Yes ☒ No	Probation/SIS Revocation ☐ Yes ☒ No		
	Criminal History Score	<u>0</u>	Seriousness Level	<u>7</u>	Offense is ☒ Felony ☐ Misd. ☐ Violation		
	Presumptive Sentence		☒ Prison Sentence of <u>42</u> months	☒ Community Corrections Center ☒ Alternative Sanction			
	Number of Counts	<u>1</u>	Defendant ☐ Attempted ☐ Solicited ☐ Conspired to Commit the Offense				
	Defendant Sentence		If probation or SIS accompanied by period of confinement, state time: <u>0</u> days <u>0</u> mths				
	Imposed <u>0</u> months		Sentence was enhanced <u>0</u> months, pursuant to A.C.A. <u>0</u>				
	Probation <u>120</u> months		Enhancement(s) is to run ☐ Concurrent ☐ Consecutive				
	SIS <u>0</u> months		Defendant was sentenced as a habitual offender, pursuant to A.C.A. 5-4-501, subsection				
	Other ☐ Life ☐ LWOP ☐ Death		☐ (a) ☐ (b) ☐ (c) ☐ (d)				
	Victim Information ☒ N/A ☐ Yes ☐ No		Age	Sex	☒ Male ☐ Female	Race & Ethnicity	☐ White ☐ Black ☐ Asian ☐ Native American ☐ Other ☐ Unknown ☐ Hispanic
	Defendant voluntarily, intelligently and knowingly entered a		Defendant ☐ 16-93-301 et seq.				
	☒ negotiated plea of ☒ guilty ☐ nolo contendere		☐ was sentenced pursuant to ☐ Other _____				
☐ plea directly to the court of ☐ guilty ☐ nolo contendere		☐ entered a plea and was sentenced by a jury. ☐ court ☐ jury					
		☐ was found guilty by the court & sentenced by ☐ court ☐ jury					
		☐ was found guilty at a jury trial & sentenced by ☐ court ☐ jury					
		☐ was found guilty of lesser offense by					
Sentence is a Departure ☐ Yes ☒ No ☐ N/A		Sentence Departure ☐ Durational ☐ Dispositional ☐ Both					
		If Durational, state how many months above/below the Presumptive Sentence <u>0</u>					
Departure Reason Mitigating # _____ or Aggravating # _____ (For Agg #16, Mit #10 or departure from guidelines, explain)							
Sentence will run ☐ Consecutive ☐ Concurrent to Offense # _____ or to Case # _____							

Defendant's Full Name: Knight, Amanda

A.C.A. # / Name of Offense 5-71-229(a)(1) - Stalking First Degree (8/16/2013 and thereafter)				Case # 63CR-16-586-3	
A.C.A. # Orig. Charge		ATN SAL004949783		Offense was ☒ Nolle Prossed ☐ Dismissed ☐ Acquitted	
Offense Date 9/7/2016		Appeal from District Court ☐ Yes ☒ No		Probation/SIS Revocation ☐ Yes ☒ No	
Criminal History Score 9	Seriousness Level 5	Offense is ☒ Felony ☐ Misd. ☐ Violation		Offense Classification ☐ Y ☐ A ☐ B ☒ C ☐ D ☐ U	
Presumptive Sentence ☐ Prison Sentence of 0 months		☐ Community Corrections Center		☐ Alternative Sanction	
Number of Counts 1		Defendant ☒ Attempted ☒ Solicited ☒ Conspired to Commit the Offense			
Defendant Sentence ☐ ADC ☐ Jud Trans ☐ Cnty Jail		If probation or SIS accompanied by period of confinement, state time: _____ 0 days _____ 0 mths			
Imposed _____ 0 months		Sentence was enhanced _____ months, pursuant to A.C.A. _____			
Probation _____ 0 months		Enhancement(s) is to run ☐ Concurrent ☐ Consecutive			
SIS _____ 0 months		Defendant was sentenced as a habitual offender, pursuant to A.C.A. 5-4-501, subsection			
Other ☐ Life ☐ LWOP ☐ Death		☐ (a) ☐ (b) ☐ (c) ☐ (d)			
Victim Information ☒ N/A ☐ Yes ☐ No		Age _____	Sex ☒ Male ☐ Female	Race & Ethnicity ☒ White ☐ Black ☐ Asian ☐ Native American ☐ Pacific Islander ☐ Other ☐ Unknown ☐ Hispanic	
Defendant voluntarily, intelligently and knowingly entered a		Defendant ☐ 16-93-301 et seq.			
☐ negotiated plea of		☐ was sentenced pursuant to ☐ Other _____			
☐ plea directly to the court of		☐ entered a plea and was sentenced by a jury.			
☐ guilty ☐ nolo contendere		☐ was found guilty by the court & sentenced by ☐ court ☐ jury			
☐ guilty ☐ nolo contendere		☐ was found guilty at a jury trial & sentenced by ☐ court ☐ jury			
☐ was found guilty of lesser offense by		☐ court ☐ jury			
Sentence is a Departure ☐ Yes ☐ No ☒ N/A		Sentence Departure ☐ Durational ☐ Dispositional ☐ Both			
		If Durational, state how many months above/below the Presumptive Sentence _____ 0			
Departure Reason Mitigating # _____ or Aggravating # _____		(For Agg #16, Mit #10 or departure from guidelines, explain)			
Sentence will run ☒ Consecutive ☒ Concurrent		to Offense # _____ or to Case # _____			

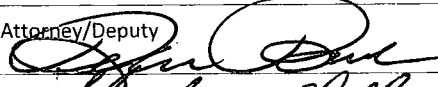
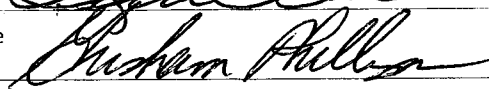
Additional Offense # 2

Defendant's Full Name: Knight, Amanda

Special Conditions	Sex Offenses Defendant has been adjudicated guilty of an offense requiring sex offender registration and must complete the Sex Offender Registration Form. ☒ Yes ☐ No	Domestic Violence Offenses Defendant has been adjudicated guilty of a domestic-violence related offense. ☐ Yes ☒ No
	Defendant has committed an aggravated sex offense as defined in A.C.A. 12-12-903 ☐ Yes ☒ No	Defendant was originally charged with a domestic-violence related offense. ☐ Yes ☒ No If Yes, state the A.C.A. # of the Offense
	Defendant is alleged to be a sexually violent predator and is ordered to undergo an evaluation at a facility designated by A.D.C. pursuant to A.C.A. 12-12-918. ☐ Yes ☒ No	If Yes to either question, identify the relationship of the victim to the Defendant.
	Defendant has been adjudicated guilty of an offense requiring registration and has previously been adjudicated guilty of a prior sex offense under a separate case number. If yes, list prior case numbers. ☐ Yes ☒ No Case Number(s)	
	DNA Sample / Qualifying Offenses Defendant has been adjudicated guilty of a qualifying offense or repeat offense as defined in A.C.A. 12-12-1103. ☒ Yes ☐ No Defendant is ordered to have a DNA sample drawn at ☒ a D.C.C. Facility ☐ the A.D.C. ☐ Other	Drug Crime Defendant has been adjudicated guilty of a drug crime as defined in A.C.A. 12-17-101. ☐ Yes ☒ No

Fines, Fees, Restitution	Court Costs	\$150.00	Restitution	\$0.00
	Fines	\$5,000.00	Payable to [If multiple beneficiaries, give names and payment priority]	
	Booking/Admin Fees (\$20)	\$20.00		
	Drug Crime Assessment Fee (\$125)	\$0.00		
	DNA Sample Fee (\$250)	\$250.00	Terms ☐ Due Immediately ☐ Installments of: _____ ☐ Payments must be made within _____ 0 days of release from A.D.C. ☐ Upon release from confinement, Defendant must return to court to establish payment of restitution. ☐ Restitution is joint and several with co-defendant(s) who was found guilty. List name(s) and case number(s).	
	Mandatory Sex Offender Fee (\$250)	\$0.00		
	Public Defender User Fee (\$25)	\$0.00		
	Public Defender Attorney Fee	\$0.00		
Other (explain below)	\$0.00			

Sentence Options	Defendant was convicted of a target offense(s) and is sentenced pursuant to provisions of the Community Punishment Act. ☐ Yes ☒ No			Extended Juvenile Jurisdiction Applied ☐ Yes ☒ No
	The Court hereby orders a judicial transfer to the Department of Community Correction. ☐ Yes ☒ No			
	Pursuant to Community Punishment Act, the defendant shall be eligible to have his/her records sealed. ☐ Yes ☒ No			☐ Yes ☒ No
	JAIL TIME CREDIT In days: 0	TOTAL TIME TO BE SERVED FOR ALL OFFENSES In months: 0 ☐ Life ☐ LWOP	Death Penalty ☐ Yes ☒ No	If Yes, State Execution Date
	DEFENDANT IS ASSIGNED TO: ☐ ADC ☐ CCC ☐ COUNTY JAIL ☒ PROBATION ☐ SIS ☐ SPECIAL CONDITIONS			
	Conditions of disposition or probation are attached. ☒ Yes ☐ No			☐ Defendant has previously failed a drug court program
	A copy of the Pre-sentence investigation on sentencing information is attached ☐ Yes ☒ No A copy of the Prosecutor's Short Report is attached ☐ Yes ☒ No			
	DEFENDANT WAS INFORMED OF APPELLATE RIGHTS ☐ Yes ☒ No		Appeal Bond \$	\$0.00
The County Sheriff is hereby ordered to : ☐ transport the defendant to county jail ☐ take custody for referral to CCC ☐ transport to ADC				
Defendant shall report to DCC probation officer for report date to CCC ☐ Yes ☒ No				

Signature	Prosecuting Attorney/Deputy Signature: 	Date: 3/28/18 Print Name: Rebecca Bush
	Circuit Judge Signature: 	Date: 4-3-18 Print Name: Grisham Phillips
	Additional Info No contact with J.H., 60 days of electronic monitoring at her expense with a curfew consistent with her work schedule, register as a sex offender, sex offender specific treatment,	